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Finally, an agency's reading of a rule must reflect "fair and considered judgment" to receive *Auer* deference. *Christopher*, 567 U. S., at 155 (quoting *Auer*, 519 U. S., at 462). That means, we have stated, that a court should decline to defer to a merely "convenient litigating position" or "post hoc rationalizatio[n] advanced" to "defend past agency action against attack." *Christopher*, 567 U. S., at 155 (quoting *Bowen v. Georgetown Univ. Hospital*, 488 U. S. 204, 213 (1988), and *Auer*, 519 U. S., at 462).⁶ And a court may not defer to a new interpretation, whether or not introduced in litigation, that creates "unfair surprise" to regulated parties. *Long Island Care*, 551 U. S., at 170. That disruption of expectations may occur when an agency substitutes one view of a rule for another. We have therefore only rarely given *Auer* deference to an agency construction "conflict[ing] with a prior" one. *Thomas Jefferson*, 512 U. S., at 515. Or the upending of reliance may happen without such an explicit interpretive change. This Court, for example, recently refused to defer to an interpretation that would have imposed retroactive liability on parties for longstanding conduct that the agency had never before addressed. See *Christopher*, 567 U. S., at 155–156. Here too the lack of "fair warning" outweighed the reasons to apply *Auer*. *Id.*, at 156 (internal quotation marks omitted).

cial authority to interpret its own words when, instead of using its expertise and experience to formulate a regulation, it has elected merely to paraphrase the statutory language." *Ibid.*

⁶The general rule, then, is not to give deference to agency interpretations advanced for the first time in legal briefs. See *Bowen*, 488 U. S., at 212–213. But we have not entirely foreclosed that practice. *Auer* itself deferred to a new regulatory interpretation presented in an *amicus curiae* brief in this Court. There, the agency was not a party to the litigation, and had expressed its views only in response to the Court's request. "[I]n the circumstances," the Court explained, "[t]here [was] simply no reason to suspect that the interpretation [did] not reflect the agency's fair and considered judgment on the matter in question." *Auer*, 519 U. S., at 462.

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The upshot of all this goes something as follows. When it applies, *Auer* deference gives an agency significant leeway to say what its own rules mean. In so doing, the doctrine enables the agency to fill out the regulatory scheme Congress has placed under its supervision. But that phrase “when it applies” is important—because it often doesn’t. As described above, this Court has cabined *Auer*’s scope in varied and critical ways—and in exactly that measure, has maintained a strong judicial role in interpreting rules. What emerges is a deference doctrine not quite so tame as some might hope, but not nearly so menacing as they might fear.

III

That brings us to the lone question presented here—whether we should abandon the longstanding doctrine just described. In contending that we should, Kisor raises statutory, policy, and constitutional claims (in that order). But he faces an uphill climb. He must first convince us that *Auer* deference is wrong. And even then, he must overcome *stare decisis*—the special care we take to preserve our precedents. In the event, Kisor fails at the first step: None of his arguments provide good reason to doubt *Auer* deference. And even if that were not so, Kisor does not offer the kind of special justification needed to overrule *Auer*, and *Seminole Rock*, and all our many other decisions deferring to reasonable agency constructions of ambiguous rules.

A

Kisor first attacks *Auer* as inconsistent with the judicial review provision of the Administrative Procedure Act (APA). See 5 U. S. C. § 706. As Kisor notes, Congress enacted the APA in 1946—the year after *Seminole Rock*—to serve as “the fundamental charter of the administrative state.” Brief for Petitioner 26 (internal quotation marks omitted). Section 706 of the Act, governing judicial review of agency

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action, states (among other things) that reviewing courts shall “determine the meaning or applicability of the terms of an agency action” (including a regulation). According to Kisor, *Auer* violates that edict by thwarting “meaningful judicial review” of agency rules. Brief for Petitioner 29. Courts under *Auer*, he asserts (now in the language of Section 706), “abdicate their office of determining the meaning” of a regulation. *Id.*, at 27 (internal quotation marks omitted).

To begin with, that argument ignores the many ways, discussed above, that courts exercise independent review over the meaning of agency rules. See *supra*, at 574–579. As we have explained, a court must apply all traditional methods of interpretation to any rule, and must enforce the plain meaning those methods uncover. There can be no thought of deference unless, after performing that thoroughgoing review, the regulation remains genuinely susceptible to multiple reasonable meanings and the agency’s interpretation lines up with one of them. And even if that is the case, courts must on their own determine whether the nature or context of the agency’s construction reverses the usual presumption of deference. Most notably, a court must consider whether the interpretation is authoritative, expertise-based, considered, and fair to regulated parties. All of that figures as “meaningful judicial review.” Brief for Petitioner 29.

And even when a court defers to a regulatory reading, it acts consistently with Section 706. That provision does not specify the standard of review a court should use in “determin[ing] the meaning” of an ambiguous rule. 5 U. S. C. § 706. One possibility, as Kisor says, is to review the issue *de novo*. But another is to review the agency’s reading for reasonableness. To see the point, assume that a regulatory (say, an employment) statute expressly instructed courts to apply *Auer* deference when reviewing an agency’s interpretations of its ambiguous rules. Nothing in that statute would conflict with Section 706. Instead, the em-

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ployment law would simply make clear *how* a court is to “determine the meaning” of such a rule—by deferring to an agency’s reasonable reading. *Ibid.* Of course, that is not the world we know: Most substantive statutes do not say anything about *Auer* deference, one way or the other. But for all the reasons spelled out above, we have long presumed (subject always to rebuttal) that the Congress delegating regulatory authority to an agency intends as well to give that agency considerable latitude to construe its ambiguous rules. See *supra*, at 569–573. And that presumption operates just like the hypothesized statute above. Because of it, once again, courts do not violate Section 706 by applying *Auer*. To the contrary, they fulfill their duty to “determine the meaning” of a rule precisely by deferring to the agency’s reasonable reading. See Sunstein & Vermeule, *The Unbearable Rightness of Auer*, 84 U. Chi. L. Rev. 297, 306 (2017) (If Congress intends “that the meaning of a regulation turns on the agency’s interpretation of its meaning,” then courts comply with Section 706’s command to “‘determine the meaning’ [of the regulation] by deferring to that view”); cf. *Arlington*, 569 U. S., at 317 (ROBERTS, C. J., dissenting) (similarly addressing why *Chevron* deference comports with Section 706). Section 706 and *Auer* thus go hand in hand.

That is especially so given the practice of judicial review at the time of the APA’s enactment. Section 706 was understood when enacted to “restate[] the present law as to the scope of judicial review.” See Dept. of Justice, Attorney General’s Manual on the Administrative Procedure Act 108 (1947); see also *Vermont Yankee Nuclear Power Corp. v. Natural Resources Defense Council, Inc.*, 435 U. S. 519, 546 (1978) (noting that this Court gives some deference to the Manual “because of the role played by the Department of Justice in drafting the legislation”). We have thus interpreted the APA not to “significantly alter the common law of judicial review of agency action.” *Heckler v. Chaney*, 470 U. S. 821, 832 (1985) (internal quotation marks omitted).

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That pre-APA common law included *Seminole Rock* itself (decided the year before) along with prior decisions foretelling that ruling. See *supra*, at 568–569. Even assume that the deference regime laid out in those cases had not yet fully taken hold. At a minimum, nothing in the law of that era required all judicial review of agency interpretations to be *de novo*. Cf. Manning, *Constitutional Structure and Judicial Deference to Agency Interpretations of Agency Rules*, 96 Colum. L. Rev. 612, 635–636 (1996) (arguing that courts before the APA used “flexible, common law methods to review administrative action”). And so nothing suggests that Section 706 imposes that requirement. Or otherwise said: If Section 706 did not change the law of judicial review (as we have long recognized), then it did not proscribe a deferential standard then known and in use.

Kisor next claims that *Auer* circumvents the APA’s rule-making requirements. Section 553, as Kisor notes, mandates that an agency use notice-and-comment procedures before issuing legislative rules. See 5 U. S. C. §§ 553(b), (c). But the section allows agencies to issue “interpret[ive]” rules without notice and comment. See § 553(b)(A). A key feature of those rules is that (unlike legislative rules) they are not supposed to “have the force and effect of law”—or, otherwise said, to bind private parties. *Perez v. Mortgage Bankers Assn.*, 575 U. S. 92, 97 (2015) (internal quotation marks omitted). Instead, interpretive rules are meant only to “advise the public” of how the agency understands, and is likely to apply, its binding statutes and legislative rules. *Ibid.* But consider, Kisor argues, what happens when a court gives *Auer* deference to an interpretive rule. The result, he asserts, is to make a rule that has never gone through notice and comment binding on the public. See Brief for Petitioner 21, 29. Or put another way, the interpretive rule ends up having the “force and effect of law” without ever paying the procedural cost. *Mortgage Bankers*, 575 U. S., at 97.

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But this Court rejected the identical argument just a few years ago, and for good reason. In *Mortgage Bankers*, we held that interpretive rules, even when given *Auer* deference, do *not* have the force of law. See 575 U. S., at 104, and n. 4. An interpretive rule itself never forms “the basis for an enforcement action”—because, as just noted, such a rule does not impose any “legally binding requirements” on private parties. *National Min. Assn. v. McCarthy*, 758 F. 3d 243, 251 (CA DC 2014). An enforcement action must instead rely on a legislative rule, which (to be valid) must go through notice and comment. And in all the ways discussed above, the meaning of a legislative rule remains in the hands of courts, even if they sometimes divine that meaning by looking to the agency’s interpretation. See *supra*, at 574–579. Courts first decide whether the rule is clear; if it is not, whether the agency’s reading falls within its zone of ambiguity; and even if the reading does so, whether it should receive deference. In short, courts retain the final authority to approve—or not—the agency’s reading of a notice-and-comment rule. See *Mortgage Bankers*, 575 U. S., at 104, n. 4 (“[I]t is the court that ultimately decides whether a given regulation means what the agency says”). No binding of anyone occurs merely by the agency’s say-so.

And indeed, a court deciding whether to give *Auer* deference must heed the same procedural values as Section 553 reflects. Remember that a court may defer to only an agency’s authoritative and considered judgments. See *supra*, at 576–579. No *ad hoc* statements or *post hoc* rationalizations need apply. And recall too that deference turns on whether an agency’s interpretation creates unfair surprise or upsets reliance interests. See *supra*, at 579. So an agency has a strong incentive to circulate its interpretations early and widely. In such ways, the doctrine of *Auer* deference reinforces, rather than undermines, the ideas of fairness and informed decisionmaking at the core of the APA.

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To supplement his two APA arguments, Kisor turns to policy, leaning on a familiar claim about the incentives *Auer* creates. According to Kisor, *Auer* encourages agencies to issue vague and open-ended regulations, confident that they can later impose whatever interpretation of those rules they prefer. See Brief for Petitioner 37–41. That argument received its fullest elaboration in a widely respected law review article pre-dating *Auer*. See Manning, 96 Colum. L. Rev., at 654–669. More recently, the concern about such self-delegation has appeared in opinions from this Court, starting with several from Justice Scalia calling for *Auer*’s reconsideration. See, e.g., *Christopher*, 567 U. S., at 158 (citing Manning, *supra*, at 655–668); *Decker v. Northwest Environmental Defense Center*, 568 U. S. 597, 620–621 (2013) (Scalia, J., concurring in part and dissenting in part) (citing Manning, *supra*); *Talk America, Inc. v. Michigan Bell Telephone Co.*, 564 U. S. 50, 69 (2011) (Scalia, J., concurring) (principally relying on Manning, *supra*).

But the claim has notable weaknesses, empirical and theoretical alike. First, it does not survive an encounter with experience. No real evidence—indeed, scarcely an anecdote—backs up the assertion. As two noted scholars (one of whom reviewed thousands of rules during four years of government service) have written: “[W]e are unaware of, and no one has pointed to, any regulation in American history that, because of *Auer*, was designed vaguely.” Sunstein & Vermeule, 84 U. Chi. L. Rev., at 308. And even the argument’s theoretical allure dissipates upon reflection. For strong (almost surely stronger) incentives and pressures cut in the opposite direction. “[R]egulators want their regulations to be effective, and clarity promotes compliance.” Brief for Administrative Law Scholars as *Amici Curiae* 18–19. Too, regulated parties often push for precision from an agency, so that they know what they can and cannot do. And ambiguities in rules pose risks to the long-run survival of agency policy. Vagueness increases the chance of adverse

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judicial rulings. And it enables future administrations, with different views, to reinterpret the rules to their own liking. Add all of that up and Kisor’s ungrounded theory of incentives contributes nothing to the case against *Auer*.

Finally, Kisor goes big, asserting (though fleetingly) that *Auer* deference violates “separation-of-powers principles.” See Brief for Petitioner 43. In his view, those principles prohibit “vest[ing] in a single branch the law-making and law-interpreting functions.” *Id.*, at 45. If that objection is to agencies’ usurping the interpretive role of courts, this opinion has already met it head-on. Properly understood and applied, *Auer* does no such thing. In all the ways we have described, courts retain a firm grip on the interpretive function. See *supra*, at 574–579; *Mortgage Bankers*, 575 U. S., at 104, n. 4. If Kisor’s objection is instead to the supposed commingling of functions (that is, the legislative and judicial) within an agency, this Court has answered it often before. See, e. g., *Withrow v. Larkin*, 421 U. S. 35, 54 (1975) (permitting such a combination of functions); *FTC v. Cement Institute*, 333 U. S. 683, 702 (1948) (same). That sort of mixing is endemic in agencies, and has been “since the beginning of the Republic.” *Arlington*, 569 U. S., at 304–305, n. 4. It does not violate the separation of powers, we have explained, because even when agency “activities take ‘legislative’ and ‘judicial’ forms,” they continue to be “exercises of[] the ‘executive Power’”—or otherwise said, ways of executing a statutory plan. *Ibid.* (quoting U. S. Const., Art. II, § 1, cl. 1). So Kisor’s last argument to dispatch *Auer* deference fails as roundly as the rest.

B

If all that were not enough, *stare decisis* cuts strongly against Kisor’s position. “Overruling precedent is never a small matter.” *Kimble v. Marvel Entertainment, LLC*, 576 U. S. 446, 455 (2015). Adherence to precedent is “a foundation stone of the rule of law.” *Michigan v. Bay Mills Indian Community*, 572 U. S. 782, 798 (2014). “[I]t promotes

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the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process.” *Payne v. Tennessee*, 501 U. S. 808, 827 (1991). To be sure, *stare decisis* is “not an inexorable command.” *Id.*, at 828. But any departure from the doctrine demands “special justification”—something more than “an argument that the precedent was wrongly decided.” *Halliburton Co. v. Erica P. John Fund, Inc.*, 573 U. S. 258, 266 (2014).

And that is even more than usually so in the circumstances here. First, Kisor asks us to overrule not a single case, but a “long line of precedents”—each one reaffirming the rest and going back 75 years or more. *Bay Mills*, 572 U. S., at 798; see nn. 2, 3, *supra*. This Court alone has applied *Auer* or *Seminole Rock* in dozens of cases, and lower courts have done so thousands of times. Deference to reasonable agency interpretations of ambiguous rules pervades the whole corpus of administrative law. Second, because that is so, abandoning *Auer* deference would cast doubt on many settled constructions of rules. As Kisor acknowledged at oral argument, a decision in his favor would allow relitigation of any decision based on *Auer*, forcing courts to “wrestle [with] whether or not *Auer*” had actually made a difference. Tr. of Oral Arg. 30; see *id.*, at 47 (Solicitor General agreeing that “every single regulation that’s currently on the books whose interpretation has been established under *Seminole Rock* now [would have] to be relitigated anew”). It is the rare overruling that introduces so much instability into so many areas of law, all in one blow.

And third, even if we are wrong about *Auer*, “Congress remains free to alter what we have done.” *Patterson v. McLean Credit Union*, 491 U. S. 164, 172–173 (1989) (stating that when that is so, “[c]onsiderations of *stare decisis* have special force”). In a constitutional case, only we can correct our error. But that is not so here. Our deference decisions are “balls tossed into Congress’s court, for acceptance or not

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as that branch elects.” *Kimble*, 576 U. S., at 456. And so far, at least, Congress has chosen acceptance. It could amend the APA or any specific statute to require the sort of *de novo* review of regulatory interpretations that Kisor favors. Instead, for approaching a century, it has let our deference regime work side-by-side with both the APA and the many statutes delegating rulemaking power to agencies. It has done so even after we made clear that our deference decisions reflect a presumption about congressional intent. See *Martin*, 499 U. S., at 151; *supra*, at 569–570. And it has done so even after Members of this Court began to raise questions about the doctrine. See, e. g., *Talk America*, 564 U. S., at 67–69 (Scalia, J., concurring). Given that history—and Congress’s continuing ability to take up Kisor’s arguments—we would need a particularly “special justification” to now reverse *Auer*.

Kisor offers nothing of that ilk. Nearly all his arguments about abandoning precedent are variants of his merits claims. We hear again, if in different parts of his briefs, that *Auer* deference frustrates “the policies embodied in the APA” and violates the separation of powers. Reply Brief 13, and n. 5; Brief for Petitioner 47–48. More generally, we learn that *Seminole Rock* was “wrong on its own terms” and “badly reasoned.” *Id.*, at 47 (internal quotation marks omitted). Of course, it is good—and important—for our opinions to be right and well-reasoned. But that is not the test for overturning precedent. Kisor does not claim that *Auer* deference is “unworkable,” a traditional basis for overruling a case. *Patterson*, 491 U. S., at 173. Nor does he point to changes in legal rules that make *Auer* a “doctrinal dinosaur.” *Kimble*, 576 U. S., at 458. All he can muster is that “[t]he administrative state has evolved substantially since 1945.” Brief for Petitioner 53. We do not doubt the point (although we note that *Auer* and other key deference decisions came along after most of that evolution took place). Still more,

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we agree with Kisor that administrative law doctrines must take account of the far-reaching influence of agencies and the opportunities such power carries for abuse. That is one reason we have taken care today to reinforce the limits of *Auer* deference, and to emphasize the critical role courts retain in interpreting rules. But it is no answer to the growth of agencies for courts to take over their expertise-based, policymaking functions. Who knows? Maybe in 1945, the FDA was not thinking about “active moieties.” See *supra*, at 567. But still, today—just as *Seminole Rock* and *Auer* held—it should have leeway to say what that term means.

IV

With that, we can finally return to Kisor’s own case. You may remember that his retroactive benefits depend on the meaning of the term “relevant” records in a VA regulation. See *supra*, at 564–565. The Board of Veterans’ Appeals, through a single judge’s opinion, understood records to be relevant only if they relate to the basis of the VA’s initial denial of benefits. By contrast, Kisor argued that records are relevant if they go to any benefits criterion, even one that was uncontested. The Federal Circuit upheld the Board’s interpretation based on *Auer* deference.

Applying the principles outlined in this opinion, we hold that a redo is necessary for two reasons. First, the Federal Circuit jumped the gun in declaring the regulation ambiguous. We have insisted that a court bring all its interpretive tools to bear before finding that to be so. See *supra*, at 574–575. It is not enough to casually remark, as the court did here, that “[b]oth parties insist that the plain regulatory language supports their case, and neither party’s position strikes us as unreasonable.” 869 F. 3d, at 1368; see *supra*, at 574–575. Rather, the court must make a conscientious effort to determine, based on indicia like text, structure, history, and purpose, whether the regulation really has more

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than one reasonable meaning. The Solicitor General argued in this Court that the Board's reading is the only reasonable one. See Brief for Respondent 49–50. Perhaps Kisor will make the converse claim below. Before even considering deference, the court must seriously think through those positions.

And second, the Federal Circuit assumed too fast that *Auer* deference should apply in the event of genuine ambiguity. As we have explained, that is not always true. A court must assess whether the interpretation is of the sort that Congress would want to receive deference. See *supra*, at 576–579. The Solicitor General suggested at oral argument that the answer in this case might be no. He explained that all 100 or so members of the VA Board act individually (rather than in panels) and that their roughly 80,000 annual decisions have no “precedential value.” Tr. of Oral Arg. 64. He thus questioned whether a Board member's ruling “reflects the considered judgment of the agency as a whole.” *Ibid.*; cf. *Mead*, 533 U. S., at 233 (declining to give *Chevron* deference to rulings “being churned out at a rate of 10,000 a year at an agency's 46 scattered offices”). We do not know what position the Government will take on that issue below. But the questions the Solicitor General raised are exactly the kind the court must consider in deciding whether to award *Auer* deference to the Board's interpretation.

We accordingly vacate the judgment below and remand the case for further proceedings.

It is so ordered.

CHIEF JUSTICE ROBERTS, concurring in part.

I join Parts I, II–B, III–B, and IV of the Court's opinion. We took this case to consider whether to overrule *Auer* v. *Robbins*, 519 U. S. 452 (1997), and *Bowles* v. *Seminole Rock & Sand Co.*, 325 U. S. 410 (1945). For the reasons the Court discusses in Part III–B, I agree that overruling those

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precedents is not warranted. I also agree with the Court's treatment in Part II–B of the bounds of *Auer* deference.

I write separately to suggest that the distance between the majority and JUSTICE GORSUCH is not as great as it may initially appear. The majority catalogs the prerequisites for, and limitations on, *Auer* deference: The underlying regulation must be genuinely ambiguous; the agency's interpretation must be reasonable and must reflect its authoritative, expertise-based, and fair and considered judgment; and the agency must take account of reliance interests and avoid unfair surprise. JUSTICE GORSUCH, meanwhile, lists the reasons that a court might be persuaded to adopt an agency's interpretation of its own regulation: The agency thoroughly considered the problem, offered a valid rationale, brought its expertise to bear, and interpreted the regulation in a manner consistent with earlier and later pronouncements. Accounting for variations in verbal formulation, those lists have much in common.

That is not to say that *Auer* deference is just the same as the power of persuasion discussed in *Skidmore v. Swift & Co.*, 323 U. S. 134 (1944); there is a difference between holding that a court ought to be persuaded by an agency's interpretation and holding that it should defer to that interpretation under certain conditions. But it is to say that the cases in which *Auer* deference is warranted largely overlap with the cases in which it would be unreasonable for a court not to be persuaded by an agency's interpretation of its own regulation.

One further point: Issues surrounding judicial deference to agency interpretations of their own regulations are distinct from those raised in connection with judicial deference to agency interpretations of statutes enacted by Congress. See *Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U. S. 837 (1984). I do not regard the Court's decision today to touch upon the latter question.

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JUSTICE GORSUCH, with whom JUSTICE THOMAS joins, with whom JUSTICE KAVANAUGH joins as to Parts I, II, III, IV, and V, and with whom JUSTICE ALITO joins as to Parts I, II, and III, concurring in the judgment.

It should have been easy for the Court to say goodbye to *Auer v. Robbins*.¹ In disputes involving the relationship between the government and the people, *Auer* requires judges to accept an executive agency's interpretation of its own regulations even when that interpretation doesn't represent the best and fairest reading. This rule creates a "systematic judicial bias in favor of the federal government, the most powerful of parties, and against everyone else."² Nor is *Auer*'s biased rule the product of some congressional mandate we are powerless to correct: This Court invented it, almost by accident and without any meaningful effort to reconcile it with the Administrative Procedure Act or the Constitution. A legion of academics, lower court judges, and Members of this Court—even *Auer*'s author—has called on us to abandon *Auer*. Yet today a bare majority flinches, and *Auer* lives on.

Still, today's decision is more a stay of execution than a pardon. The Court cannot muster even five votes to say that *Auer* is lawful or wise. Instead, a majority retains *Auer* only because of *stare decisis*. And yet, far from standing by that precedent, the majority proceeds to impose so many new and nebulous qualifications and limitations on *Auer* that THE CHIEF JUSTICE claims to see little practical difference between keeping it on life support in this way and overruling it entirely. So the doctrine emerges maimed and enfeebled—in truth, zombified.

Respectfully, we owe our colleagues on the lower courts more candid and useful guidance than this. And judges owe the people who come before them nothing less than a fair

¹ 519 U.S. 452 (1997).

² Larkin & Slattery, *The World After Seminole Rock and Auer*, 42 Harv. J. L. & Pub. Pol'y 625, 641 (2019) (internal quotation marks omitted).

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contest, where every party has an equal chance to persuade the court of its interpretation of the law's demands. One can hope that THE CHIEF JUSTICE is right, and that whether we formally overrule *Auer* or merely neuter it, the results in most cases will prove the same. But means, not just ends, matter, and retaining even this debilitated version of *Auer* threatens to force litigants and lower courts to jump through needless and perplexing new hoops and in the process deny the people the independent judicial decisions they deserve. All to what end? So that we may *pretend* to abide *stare decisis*?

Consider this case. Mr. Kisor is a Marine who lost out on benefits for post-traumatic stress disorder when the court of appeals deferred to a regulatory interpretation advanced by the Department of Veterans Affairs. The court of appeals was guilty of nothing more than faithfully following *Auer*. But the majority today invokes *stare decisis*, of all things, to vacate that judgment and tell the court of appeals to try again using its newly retooled, multi-factored, and far less determinate version of *Auer*. Respectfully, I would stop this business of making up excuses for judges to abdicate their job of interpreting the law, and simply allow the court of appeals to afford Mr. Kisor its best independent judgment of the law's meaning.

The Court's failure to be done with *Auer*, and its decision to adorn *Auer* with so many new and ambiguous limitations, all but guarantees we will have to pass this way again. When that day comes, I hope this Court will find the nerve it lacks today and inter *Auer* at last. Until then, I hope that our judicial colleagues on other courts will take courage from today's ruling and realize that it has transformed *Auer* into a paper tiger.

I. How We Got Here

Where did *Auer* come from? Not from the Constitution, some ancient common law tradition, or even a modern statute. Instead, it began as an unexplained aside in a decision

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about emergency price controls at the height of the Second World War. Even then, the dictum sat on the shelf, little noticed, for years. Only in the last few decades of the 20th century did lawyers and courts really begin to dust it off and shape it into the reflexive rule of deference to regulatory agencies we know today. And they did so without ever pausing to consider whether a rule like that could be legally justified or even made sense. *Auer* is really little more than an accident.

A

Before the mid-20th century, few federal agencies engaged in extensive rulemaking, and those that did rarely sought deference for their regulatory interpretations.³ But when the question arose, this Court did not hesitate to say that judges reviewing administrative action should decide all questions of law, including questions concerning the meaning of regulations. As Justice Brandeis put it, “[t]he inexorable safeguard which the due process clause assures is . . . that there will be opportunity for a court to determine whether the applicable rules of law . . . were observed.”⁴ Unsurprisingly, the government’s early, longstanding, and consistent interpretation of a statute, regulation, or other legal instrument could count as powerful *evidence* of its original public meaning.⁵ But courts respected executive interpretations only because and to the extent “they embodied understandings made roughly contemporaneously with . . . enactment

³See Knudsen & Wildermuth, *Unearthing the Lost History of Seminole Rock*, 65 Emory L. J. 47, 55, 65, 68 (2015) (Lost History).

⁴*St. Joseph Stock Yards Co. v. United States*, 298 U.S. 38, 73 (1936) (concurring opinion). See also *FTC v. Gratz*, 253 U.S. 421, 427 (1920); *ICC v. Union Pacific R. Co.*, 222 U.S. 541, 547 (1912); *Belden v. Chase*, 150 U.S. 674, 698 (1893); *Decatur v. Paulding*, 14 Pet. 497, 515 (1840); accord, Woolhandler, *Judicial Deference to Administrative Action—A Revisionist History*, 43 Admin. L. Rev. 197, 206–207 (1991).

⁵Bamzai, *The Origins of Judicial Deference to Executive Interpretation*, 126 Yale L. J. 908, 930–947 (2017) (Origins).

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and stably maintained and practiced since that time,” not “because they were executive as such.”⁶

Writing for four Members of the Court, JUSTICE KAGAN suggests that *Auer*’s very different approach to the interpretation of agency regulations was foreshadowed as early as this Court’s 1898 decision in *United States v. Eaton*.⁷ *Ante*, at 569. But this is mistaken. The question in that case was whether Mr. Eaton’s appointment as temporary vice-consul to Siam was consistent with State Department regulations. After several pages of careful and independent legal analysis, the Court held that the regulations did authorize the appointment. That conclusion, the Court explained, was “rendered necessary by a consideration of the text.”⁸ Only *after* reaching this conclusion did the Court observe that the State Department had previously adopted the same construction, noting along the way that the Department’s views were “entitled to the greatest weight” and that the Court saw “no reason in this case to doubt [their] correctness.”⁹ *Eaton* thus simply followed the well-worn path of acknowledging that an agency’s interpretation of a regulation can supply *evidence* of its meaning.¹⁰ Nowhere did the Court even hint that it would have deferred to the State Depart-

⁶ *Id.*, at 943, 962; cf. *NLRB v. Noel Canning*, 573 U. S. 513, 572–573 (2014) (Scalia, J., concurring in judgment) (an “open, widespread, and unchallenged” governmental practice can “guide [courts’] interpretation” of an ambiguous text, but it cannot “alter” the meaning of that text); *Edwards’ Lessee v. Darby*, 12 Wheat. 206, 210 (1827) (“In the construction of a doubtful and ambiguous law, the cotemporaneous construction of those who were called upon to act under the law, and were appointed to carry its provisions into effect, is entitled to very great respect”).

⁷ 169 U. S. 331.

⁸ *Id.*, at 342.

⁹ *Id.*, at 342–343.

¹⁰ Cf. Newman, *How Courts Interpret Regulations*, 35 Cal. L. Rev. 509, 521, and n. 78 (1947) (noting that *Eaton* suggested administrative interpretations could be “‘persuasive’ but not binding”).

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ment's views about the meaning of the law if its own independent textual analysis had not led it to the same conclusion.

All this is borne out by the Court's later teachings in *Skidmore v. Swift & Co.* in 1944.¹¹ The question there was whether the time overnight employees spent waiting to respond to fire alarms could amount to compensable overtime under the Fair Labor Standards Act. The lower courts had held as a matter of law that it could not. In an opinion by Justice Jackson, this Court reversed. The Court first held, based on its own independent analysis, that "no principle of law found either in the statute or in Court decisions precludes waiting time from also being working time."¹² Only then did the Court consider "what, if any, deference courts should pay" to the views of the Administrator of the Labor Department's Wage and Hour Division.¹³ And on that question the Court reaffirmed the traditional rule that an agency's interpretation of the law is "not controlling upon the courts" and is entitled only to a weight proportional to "the thoroughness evident in its consideration, the validity of its reasoning, its consistency with earlier and later pronouncements, and all those factors which give it power to persuade."¹⁴ At the time, the influential administrative law scholar Kenneth Culp Davis considered this "[a]n entirely reliable statement" of the law.¹⁵

¹¹ 323 U. S. 134.

¹² *Id.*, at 136–137. Much of the legal analysis supporting this conclusion was contained in the companion case, *Armour & Co. v. Wantock*, 323 U. S. 126 (1944), which made no mention of any administrative interpretations. *Id.*, at 129–134; see *Skidmore*, 323 U. S., at 136 (citing the "reasons set forth in the *Armour* case decided herewith").

¹³ *Id.*, at 139.

¹⁴ *Id.*, at 140; see also *id.*, at 139 (the agency's views "are not, of course, conclusive, even in the cases with which they directly deal" and do not "bin[d] a district court's processes, as an authoritative pronouncement of a higher court might do").

¹⁵ Davis, *Administrative Rules—Interpretative, Legislative, and Retroactive*, 57 Yale L. J. 919, 936–939, and n. 86 (1948); see also K. Davis, *Administrative Law* § 249, p. 901 (1951) ("[S]ubstitution of judicial judg-

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In truth, the seeds of the *Auer* doctrine were first planted only in 1945, in *Bowles v. Seminole Rock & Sand Co.*¹⁶ That case involved regulations issued by the Office of Price Administration (OPA), which Congress had tasked with stabilizing the national economy during the Second World War through the use of emergency price controls. It was in that context that the Court declared—for the first time and without citing any authority—that “if the meaning of [the regulation were] in doubt,” the agency’s interpretation would merit “controlling weight unless it is plainly erroneous or inconsistent with the regulation.”¹⁷

Yet even then it was far from clear how much weight the Court really placed on the agency’s interpretation. As it had in *Eaton*, the Court in *Seminole Rock* began with an extended discussion of “the plain words of the regulation,” which led it to conclude that the text “clearly” supported the government’s position.¹⁸ Only after reaching that conclusion based on its own independent analysis did the Court proceed to add that “[a]ny doubts . . . are removed by reference to the administrative construction.”¹⁹

So confused was all this that readers at the time didn’t perceive *Seminole Rock*’s dictum as changing anything. Professor Davis observed that the Court’s discussion about giving “controlling weight” to the agency’s interpretation was an unexplained aside that made no difference to the case’s outcome.²⁰ The dictum, too, was readily explained as reflecting the unusual factual context in which the case

ment on the content of interpretative rules is always permissible, even though the reviewing court may give ‘weight’ or ‘great weight’ to the rule. The best guide may be the Court’s formula in *Skidmore* . . .”).

¹⁶ 325 U. S. 410.

¹⁷ *Id.*, at 414.

¹⁸ *Id.*, at 414–417.

¹⁹ *Id.*, at 417.

²⁰ See Davis, Scope of Review of Federal Administrative Action, 50 Colum. L. Rev. 559, 597 (1950).

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arose, involving an emergency government program created to deal with “unique circumstances of war and economic depression.”²¹ And the Court decided *Seminole Rock* the same Term it issued *Skidmore*, where it reaffirmed the traditional rule that an agency’s views about the law may *persuade* a court but can never *control* its judgment. In fact, the Court in *Seminole Rock* was careful to note that the OPA interpretation before it bore many of the characteristics *Skidmore* would have recognized as increasing its persuasive force: It had been announced concurrently with the regulation, disseminated widely to the regulated community, and adhered to consistently by the agency.²²

No wonder, then, that for many years after the decision, courts “connected *Seminole Rock* more closely with the deference framework . . . under *Skidmore*” and generally engaged in a *Skidmore*-type analysis, accepting the agency’s interpretation “only after independently examining the regulation and concluding that the agency interpretation was sound.”²³ If *Seminole Rock*’s “controlling weight” dictum was afforded any force, it was usually only in the price control context; even then it was ordinarily extended only to “official” agency interpretations that were published contemporaneously with the regulation and widely distributed.²⁴ The Fourth Circuit exemplified the early understanding of *Seminole Rock* when it observed—citing both *Seminole Rock* and *Skidmore*—that “under settled principles” an official agency interpretation in an opinion letter was entitled only to “respectful consideration.”²⁵ The letter, the court stressed,

²¹ Lost History 60; see also Anthony, The Supreme Court and the APA: Sometimes They Just Don’t Get It, 10 Admin. L. J. Am. U. 1, 12 (1996).

²² 325 U.S., at 417–418; see Pojanowski, Revisiting *Seminole Rock*, 16 Geo. J. L. & Pub. Pol’y 87, 88 (2018) (“A closer look at *Seminole Rock* suggests an unremarkable application of the less-deferential standard of review of *Skidmore*”).

²³ Lost History 94–97; see Pojanowski, *supra*, at 92–96.

²⁴ Lost History 65–68.

²⁵ *Southern Goods Corp. v. Bowles*, 158 F. 2d 587, 590 (1946).